HARBOURLIGHT MEDIA

Clearance Code: Medicines and Health

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1. Purpose and scope

This code sets out when and where Harbourlight Media may transmit advertising for medicines and health products. It applies to every spot of every campaign in the category on Harbourlight One, Harbourlight Sport, Harbourlight Drama and Harbourlight Life.

A campaign is cleared in full only when its copy is acceptable and every booked spot meets the scheduling rules in sections 4 to 7; when some spots do not, only its compliant spots can be cleared. The clearance desk checks both, and a Clearance Controller decides, as the Advertising Clearance Policy describes.

The code is published to agencies and may be quoted to anyone who asks.

2. Products covered

This code covers advertising for medicines and health products sold without a prescription: pain relief, cold and flu remedies, allergy relief, vitamins and supplements, digestive health products and sleep aids.

Medicines available only on prescription may not be advertised on Harbourlight's channels.

3. How this code is applied

The rules in sections 4 to 7 apply to every booked spot of a campaign for medicines and health products, on the broadcast day the spot belongs to.

Times in this code are written on the ordinary 24-hour clock. The Scheduling and Audience Rules explain how they are placed on the broadcast day, and what a centre break, an end break, in and adjacent mean.

A spot in a centre break is in the programme around it. A spot in an end break is adjacent to the programme before it and to the programme after it.

A spot that meets every rule may be transmitted. A spot that breaks a rule may not be transmitted, and is recorded against every rule it breaks.

4. Restricted hours

Spots for this category may be transmitted at any time of the broadcast day.

The rules in sections 5 to 7 still apply to every spot.

5. The under-18 audience

Spots may not be transmitted in or adjacent to a programme whose under-18 audience index is 150 or more.

The index is the forecast under-18 audience index that Harbourlight's audience planning team publishes for each programme before the booking week begins, as the programme schedule shows it.

A spot in an end break is tested against both programmes, and breaks this rule if either of them is indexed at or above the figure in this section.

6. Programmes made for children

Spots may not be transmitted in a programme made for children.

A programme is made for children when the programme schedule marks it so, whatever its under-18 audience index.

The rule covers the centre breaks of such a programme only. A spot in an end break next to it is not caught by this rule, but must still meet section 5.

7. How many spots, and how far apart

No more than 10 spots of one campaign may be transmitted on one channel in one broadcast day.

Two spots of one campaign on one channel must be at least 5 minutes apart.

Both rules are applied per campaign, per channel and per broadcast day, to the spots in the order they are transmitted. Every booked spot counts towards the limit, whether or not it breaks another rule.

The separation is measured from the campaign's previous spot on the same channel in the same broadcast day. Two spots of one campaign in one break are zero minutes apart and are transmitted in the order of their spot references.

8. Copy requirements

The copy of every campaign in this category must meet these requirements, and the issue guides say how the clearance desk checks each kind of claim.

- Every claim about what the product does must be supported by evidence the advertiser holds, and must stay within the product's licence.
- The copy must not suggest that the product is certain to work, works faster than its evidence shows, or has no side effects.
- The copy must not show a doctor, a nurse or a presenter styled as one recommending the product.
- The copy must not be addressed to under-18s, or show a child taking the product without an adult.
- The copy must end with an on-screen line telling viewers to read the label.

9. Standing restrictions on every cleared spot

Every cleared spot in this category is cleared subject to these standing restrictions:

- A cleared spot may be transmitted only on the channel, broadcast day and break its certificate shows.
- The copy is cleared as submitted under its clock number, and any change needs a new clearance.
- If a programme's forecast index is revised before transmission, a spot in or adjacent to it must be checked again against section 5.
- The line telling viewers to read the label must be on screen when the product is named at the end of the spot.

10. Re-booking a withdrawn spot

This category has no restricted hours, and its spots may be transmitted next to a programme made for children but never in one. A spot withdrawn from a centre break of such a programme can often move to the end break before or after it, provided both programmes are forecast below the threshold in section 5. A spot withdrawn under section 7 may move to another broadcast day or channel, where it counts with the campaign's other spots there. Send the new break to the clearance desk with the campaign and spot references, and the desk checks it against this code before it is transmitted.

11. Questions about this code

Agencies can ask about the medicines and health code through the Agency Liaison assigned to them. Questions about a particular campaign are answered only for the agency that booked it.